

the meaning thus settled, has been reenacted by Congress.¹⁴ The construction should be followed until Congress sees fit to change it.

The judgment is

Affirmed.

REPUBLIC OF MEXICO ET AL. v. HOFFMAN.

CERTIORARI TO THE CIRCUIT COURT OF APPEALS FOR THE NINTH CIRCUIT.

No. 455. Argued January 11, 12, 1945.—Decided February 5, 1945.

1. The decisions of the two courts below that the vessel in question was not in the possession or service of the Mexican government are supported by the evidence. P. 33.
2. A merchant vessel owned but not possessed by a friendly foreign government *held* not immune from a suit in rem in admiralty, where the Department of State has refrained from certifying that it allows the immunity or recognizes ownership of the vessel without possession by the foreign government as a ground for immunity. Pp. 36, 38.
3. Since the Department of State has long and consistently followed the policy of recognizing immunity from suit of a vessel in the possession and service of a foreign government, the courts have allowed such immunity upon proof of such possession and use even when not certified by the Department of State. P. 36.
4. It is the duty of the courts, in a matter so intimately associated with our foreign policy and which may profoundly affect it, not to enlarge an immunity to an extent which the Government, though it has had numerous opportunities, has not seen fit to recognize. P. 38.

143 F. 2d 854, affirmed.

CERTIORARI, 323 U. S. 697, to review the affirmance of a judgment for the libellant in a suit in rem in admiralty.

Mr. Morris Lavine for petitioners.

¹⁴ Congress withdrew the exclusion, as to gifts in trust, in the Revenue Act of 1938, c. 289, 52 Stat. 447, § 505, amending § 504 (b) of the 1932 Act. But it was restored, though reduced to \$3,000, by the Revenue Act of 1942, c. 619, 56 Stat. 798, § 454.